



CHAPTER cix.

An Act to confirm a Provisional Order made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 relating to Dunfermline and District. A.D. 1909.
[16th August 1909.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 the Board of Trade have made the Provisional Order set out in the schedule to this Act : 45 & 46 Viet.
c. 56.
51 & 52 Viet.
c. 12.
53 & 54 Viet.
c. 13.
2 Edw. 7.
c. 35.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Electric Lighting Order Confirmation (No. 2) Act 1909. Short title.

2. The Order as amended and set out in the schedule to this Act is hereby confirmed and the same shall from and after the passing of this Act have full validity and effect. Order in
schedule
confirmed.

A.D. 1909.

SCHEDULE.

*Dunfermline
and District.*

**DUNFERMLINE AND DISTRICT ELECTRIC LIGHTING
(AMENDMENT).**

*Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 the Electric Lighting
(Scotland) Act 1890 and the Electric Lighting (Scotland)
Act 1902 to the Provost Magistrates and Councillors of the
Royal Burgh of Dunfermline in the County of Fife amending
the Dunfermline and District Electric Lighting Order 1906.*

Short and
collective
titles.

1. This Order may be cited as the Dunfermline and District Electric Lighting (Amendment) Order 1909 and the Dunfermline and District Electric Lighting Order 1906 (hereinafter called "the principal Order") and this Order may be cited together as the Dunfermline and District Electric Lighting Orders 1906 and 1909.

Undertakers
may take a
supply in
bulk.

2. Nothing contained in section 3. of the schedule to the Electric Lighting (Clauses) Act 1899 (incorporated with the principal Order) shall be construed as preventing the Undertakers from taking a supply in bulk from any company body or person authorised by Act of Parliament to give such a supply.

Power to
transfer.

3.—(1) At any time within one year after the commencement of this Order (or such extended period not exceeding in the whole fifteen months as the Board of Trade may allow) the Undertakers may with the consent of and upon such terms and conditions and for such period as may be approved by the Board of Trade by a deed to be approved by that Board transfer the undertaking authorised by the principal Order as amended by this Order to the Fife Electric Power Company and on such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking transferred shall subject to the provisions contained in the deed of transfer be transferred to and may be exercised by and shall attach to the said company who shall subject to all the provisions of the principal Order as amended by this Order become the Undertakers for the purposes of the principal Order as so amended.

(2) Notwithstanding anything contained in the principal Order the said company after becoming such Undertakers as aforesaid shall not be entitled to charge for energy a higher price than sixpence per unit.

Extension of
period for
compulsory
works.

4. The date from which the periods of two years and eighteen months respectively are to be reckoned for the purposes of section 21

[9 EDW. 7.] *Electric Lighting Order Confirmation* [Ch. cix.]
(No. 2) Act, 1909.

of the schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with the principal Order shall be the commencement of this Order and section 6 of the principal Order is hereby amended accordingly. A.D. 1909.
Dunfermline and District.

5. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand or to continue to receive from the Undertakers a supply of electrical energy to premises having a separate supply unless he has agreed to pay to the Undertakers such minimum annual sum as will give to the Undertakers a reasonable return on the capital expenditure and will cover other standing charges incurred by the Undertakers to meet the possible maximum demand for those premises. The sum to be so paid shall be determined in default of agreement by arbitration. Supply to premises where consumer has separate supply.

6. This Order shall come into force upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commencement of Order.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C. ; or
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH ; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.

